

HOUSE BILL NO. 228

INTRODUCED BY B. MERCER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING REQUIREMENTS FOR THE REPORTING OF ACTUAL COSTS FOR LEGISLATION WITH PROJECTED FISCAL IMPACTS; MODIFYING THE REPORTING PERIOD TO EVERY SIX MONTHS; REVISING REPORTING REQUIREMENTS; REPEALING A TERMINATION DATE; AMENDING SECTION 5-4-208, MCA; REPEALING SECTION 6, CHAPTER 350, LAWS OF 2021; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 5-4-208, MCA, is amended to read:

"5-4-208. ~~(Temporary) Report Biannual report~~ REPORT of actual costs for legislation with projected fiscal impact. (1) Except for the general appropriations act and any bill exempted by the legislature, for each bill with an estimated expenditure amount of over ~~\$1 million~~ \$500,000 from the general fund in any 1 of the 4 fiscal years identified in the bill's fiscal note, or as required in the bill, that is passed and approved for which a fiscal note is prepared and presented to the legislature, the office of budget and program planning shall prepare and present ~~an annual a~~ AN ANNUAL report to the legislative finance committee ~~by October 1 of each year every February and October~~ BY OCTOBER 1 OF EACH YEAR.

(2) ~~(a)~~ The ~~February report~~ The report must include the following information:

~~(a)(i)(A)~~ the name of the bill;

~~(b)(ii)(B)~~ the actual expenditures incurred based on the bill as enacted for the past entire fiscal year during the first 2 quarters of the preceding fiscal year, FOR THE PAST ENTIRE FISCAL YEAR and a description of how the funds were expended; and

~~(c)(iii)(C)~~ a comparison to the projected costs of the bill as projected in the fiscal note for that same fiscal year period of time FISCAL YEAR.

(b) — The October report must include the following information:

(i) — the name of the bill;

~~(ii) the actual expenditures incurred based on the bill as enacted during the last 2 quarters of the preceding fiscal year, and a description of how the funds were expended; and~~

~~(iii) a comparison to the projected costs of the bill as projected in the fiscal note for that same period of time.~~

~~(2)(3)~~ The report to the legislature must include bills that qualify under subsection (1) for which a fiscal note was prepared which have been in effect for at least 1 fiscal year. The bill must be included in the report for each year ~~6-month period~~ YEAR a cost was projected in a corresponding fiscal note.

~~(3)(4)~~ The report must be provided in an electronic format.

~~(4)(5)~~ The report must also be submitted to the legislature as provided in 5-11-210. ~~(Terminates December 31, 2025—sec. 6, Ch. 350, L. 2021.)~~"

NEW SECTION. **Section 2. Repealer.** Section 6, Chapter 350, Laws of 2021, is repealed.

NEW SECTION. **Section 3. Effective date.** [This act] is effective June 30, 2025.

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